

STATE OF NEW YORK

7013--C

2025-2026 Regular Sessions

IN ASSEMBLY

March 18, 2025

Introduced by M. of A. PAULIN, WEPRIN, REYES, LUNSFORD, TAPIA, SEAWRIGHT, GONZALEZ-ROJAS, McDONALD, KELLES, GRIFFIN -- read once and referred to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Health in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to rates of payment for certified home health agencies

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subdivision 13 of section 3614 of the public health law is amended by adding a new paragraph (d) to read as follows:

(d) Notwithstanding any inconsistent law or regulation the commissioner shall annually make the system of episodic payments, including all pricing mechanisms, available to all Medicaid managed care plans licensed to operate in New York state, all child health insurance plans licensed to operate under section twenty-five hundred eleven of this chapter, and all essential plans authorized by section three hundred sixty-nine-gg of the social services law. The commissioner shall annually notify all such managed care plans of their responsibilities for ensuring that their enrolled members have access to certified home health agency services; that such services are critical to improving patient care and reducing overall costs, particularly costs related to avoidable hospital use; and that episodic payments as described in paragraph (a) of this subdivision are considered the standard method of certified home health agency payment by New York state government agencies. Nothing in this paragraph shall preclude a managed care plan and certified home health agency from agreeing upon an alternative rate

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 methodology and payment rate, including value-based payments related to
2 health outcome measurements.

3 § 2. This act shall take effect on the first of January next succeed-
4 ing the date on which it shall have become a law.